

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #10	CCRB Case #: 201902094	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/11/2019 12:10 AM	Location of Incident: Coney Island Avenue between Church Avenue and Caton Avenue	18 Mo. SOL 4/28/2021	Precinct: 70		
Date/Time CV Reported Mon, 03/11/2019 3:10 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 03/11/2019 3:10 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Marika Williams	04520	961581	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Desean Mullings	19483	959833	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Marika Williams	Discourtesy: Police Officer Marika Williams acted discourteously toward § 87(2)(b)	A . Unsubstantiated
B . POF Marika Williams	Abuse: Police Officer Marika Williams refused to provide her name to § 87(2)(b)	B . Unsubstantiated

Case Summary

On March 11, 2019, § 87(2)(b) filed this complaint with the CCRB online.

On March 11, 2019, at approximately 12:10 a.m., in the vicinity of Coney Island Avenue between Church Avenue and Caton Avenue in Brooklyn, § 87(2)(b) was driving for Uber with a female passenger in the vehicle, when he got pulled over by PO Marika Williams and PO Desean Mullings, of the 70th Precinct. PO Williams approached § 87(2)(b) window and asked for his license and registration and informed § 87(2)(b) that he was pulled over for a defective tail light. PO Williams wrote summons #ABD1522500 (**BR 01**) regarding the tail light. PO Williams explained how to get the summons dismissed and § 87(2)(b) asked why he was being issued a summons if it was just going to be dismissed. Then PO Williams allegedly threw § 87(2)(b) ID, license, and registration at him and walked away (**Allegation A: Discourtesy – Action, unsubstantiated**). § 87(2)(b) shouted, “What’s your problem? What’s your name, officer, what’s your name?” as PO Williams walked back to her vehicle. PO Williams did not respond to § 87(2)(b) request for her name (**Allegation B: Abuse of Authority – Refusal to provide name, unsubstantiated**).

This incident resulted in summons #§ 87(2)(b) (**BR 01**) for a defective tail light.

Body-worn camera footage found in IAs 37 and 38 (**BR 02** and **BR 03**) were obtained and relevant portions are discussed below. There was no other known video of the incident.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Marika Williams acted discourteously toward

§ 87(2)(b):

Allegation (B) Abuse of Authority: Police Officer Marika Williams refused to provide her name to

§ 87(2)(b): It is undisputed that PO Williams pulled § 87(2)(b) over for a defective tail light. § 87(2)(b) handed PO Williams his license and registration. PO Williams returned to her vehicle to write the summons. When she was finished, PO Williams returned to § 87(2)(b) and informed him that he could get the summons dismissed if he fixed his tail light within 24 hours. § 87(2)(b) asked PO Williams why he was issued a summons if it was just going to be dismissed.

§ 87(2)(g)

§ 87(2)(b) consistently stated (**BR 04**, **BR 05**, and **BR 06**), that after he asked PO Williams why he was issued a summons if it was going to be dismissed, PO Williams threw his license, registration, and TLC license by flicking her wrist. The documents hit § 87(2)(b) left shoulder, fell onto the floor, and went under his seat. § 87(2)(b) had not refused to take the documents. § 87(2)(b) shouted, “What’s your problem? What’s your name, officer, what’s your name?” as PO Williams was walking away. PO Williams was at least eight feet away when § 87(2)(b) asked for her name, but she did not respond.

Uber identified the account holder for the passenger’s ride, however, the account holder stated that her sister was using her Uber account and refused to provide any identifying information or contact information. Therefore, the passenger could not be contacted for a statement.

PO Williams stated (**BR 07**) that after she explained to § 87(2)(b) how to have the summons dismissed, he did not take the summons or his license from her hand. PO Williams

placed the summons and the license into § 87(2)(b) vehicle but did not remember where they went once she let go. PO Williams walked back to her vehicle and did not hear § 87(2)(b) say anything. PO Williams stated that she never heard § 87(2)(b) ask for her name or any other identifying information at any point during the incident. PO Williams did not recall whether she told § 87(2)(b) her name at any point during the incident.

PO Williams's name, command, and tax number were on the handwritten summons (**BR 14**) that § 87(2)(b) received during the incident.

PO Mullings stated (**BR 08**) that he was standing by the rear passenger side of the vehicle and was not able to hear PO Williams or § 87(2)(b) speaking to one another. PO Mullings was able to see into the vehicle but did not observe PO Williams handing the summons to § 87(2)(b) and could not see where PO Williams or PO Rahman's hand were positioned.

The sub-clip from PO Williams's body-worn camera, found in IA 52 (**BR 09**), captures the last 20 seconds of the body-worn camera video. PO Williams is holding § 87(2)(b) summons, license, and registration on the left-hand side of the screen. § 87(2)(b) says, "If it's going to get dismissed, what's the point of giving me a ticket?" PO Williams says, "Okay," as she turns to the right and walks away. The sub-clip from PO Mullings's body-worn camera, found in IA 53 (**BR 10**), captures the last 26 seconds of the body-worn camera video. At 00:22 seconds, PO Mullings turns around right as PO Williams is heard saying "Okay."

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be *unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 11**).
- PO Williams has been a member of service for three years and a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (**BR 12**).
- On July 31, 2019, a Notice of Claim inquiry was sent to the New York City Office of the Comptroller, the results of which will be added to the case file upon receipt (**BR 13**).

Squad No.: 10

Investigator: _____

	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date